

- (b) opening of stations, junctions and level crossings;
- (c) re-modelling of yards and re-building of bridges;
- (d) introduction of electric traction ; and
- (e) any alteration or re-construction materially affecting the structural character of any work to which the provision of Secs. 21 and 22 apply or are extended by this section.

Comments

Section 23 lays down that the provisions of Secs. 21 & 22 shall apply to the opening of additional lines of railway, deviation lines, opening of stations, junctions, level crossings, introduction of electric traction, etc.

Preferential allotment Raks – In so far as the consideration of the committee concerned it appears that such constitution of such a committee had been accepted by all the parties appearing in this proceedings including the State authorities and/or Railway authorities. Accordingly the Court, directs that (i) a committee should be constituted consisting of the Secretary. Department of food and supply. Government of West Bengal, (ii) Assistant Director of Consumer Affairs, Government of West Bengal, (iii) Assistant Commissioner, Calcutta, and (iv) one representative of the Railway Board. The said Committee shall first consider the requirement of Salt district-wise on the basis of the basis of information or otherwise and accordingly, the rakes should be determined district-wise. Such determination will be made only on the basis of the need of a particular district so that the iodised salt may reach in that district for the consumers in question having regard with the object of giving [preferential treatment in the matter of allotment of rake for iodised salt and having regard to the very object for declaring entire state of West Bengal as *Goitre endemic area*.

24. Temporary suspension of traffic :- When an accident has occurs on a railway resulting in a temporary suspension of traffic, and either the original lines of rails and works have been restored to their original standard or a temporary diversions has been laid for the purpose of restoring communication, the original lines of rails and works so restored, or the temporary diversions, as the case may be may, without prior inspection by the commissioner, be opened for the public carriage of passengers, subject to the following conditions, namely:

- (a) the railway servant incharge of the works undertaken by reason of the accident has certified in writing that the opening of the restored lines of rails and works, or of the temporary diversion will not in his opinion be attended with danger tot the public: and

- (b) a notice of the opening of the lines of rails and works or the diversion shall be sent immediately to the Commissioner.

Comment

Section 24 provides that where an accident has occurred on a railway resulting in a temporary suspension of traffic may be opened for the public carriage of passengers without prior inspection by the Commissioner if the railway servant in charge of the works undertaken by reason of the accident certifies that opening of the lines or rails, works and temporary diversion will not be attended with danger to the public and notice of the opening of such lines of rails, works or other diversion is sent by telegraph to the Commissioner.

25. Power to close railway opened for the public carriage of passengers

:- Where after the inspection of any railway opened and used for the public carriage of passengers or any rolling stock used thereon, the Commissioner is of the opinion that the use of the railway or of any rolling stock will be attended with danger to the public using it, the Commissioner shall send a report to the Central Government who may thereupon direct that –

- i) the railway be closed for the public carriage of passengers; or
- ii) the use of the rolling stock be discontinued or
- ii) the railway or the rolling stock may be used for the public carriage of passengers subjects to such conditions as it may consider necessary for the safety of public.

Comment

Section 25 empowers the Central Government to close railway opened for the public carriage of passengers on receipt of the opinion of the Commissioner.

26. Re-opening of closed railway. :- When the Central Government has, under sec. 25 directed the closure of a railway or the discontinuance of the use of any rolling stock-

- (a) the railway shall not be re-opened for the public carriage of passengers until it has been inspected by the Commissioner and its re-opening is sanctioned in accordance with the provisions of this Chapter ; and